

for that situation (and the declaration also failed to provide foundational evidence as to the rate of the posted speed limit or what rate of speed LERAN was traveling in the moments before the subject accident occurred).

Furthermore, speed is only one possible basis for breach of a driver's duty. For example, it does not negate the possibility of driver inattentiveness on the part of LERAN, who presented no evidence as to attentiveness.

Since this motion failed to negate a necessary element of either of the causes of action alleged in the complaint, nor to establish a complete affirmative defense to them, the court denies the summary judgment motion filed by LERAN and SHI BAI.

E. ROE v. ALTERNATIVE FAMILY SERVICES, et al.
Case No. CU24-08890

Petition for Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person with a Disability

TENTATIVE RULING

The Minor's Compromise is approved in part, and denied in part. All components of the proposal are acceptable and approved with the exception of the request for Plaintiff attorney fees.

Plaintiff counsel has requested an allocation of 40% of the gross settlement amount for its fees in this matter. This is not justified by the work required by the case and far exceeds the customary fee of 25% that is almost always apportioned for legal representation of minors. Therefore, the court denies this portion of the minors compromise request. It may be modified to reflect an allocation for plaintiff attorney fees of not more than 28%, at which time the court will approve the document in its entirety.

ANATOLIY LEBEDINSKIY v. PATRICK JOHN BOAL and JUAN MORALES PEREZ
Case No. CU25-00920

BOAL's Motion for Leave to File Cross-Complaint

TENTATIVE RULING

Defendant PATRICK JOHN BOAL ("BOAL") moves for leave to file a cross-complaint against Plaintiff ANATOLIY LEBEDINSKIY.